How a construction project gets approved and built

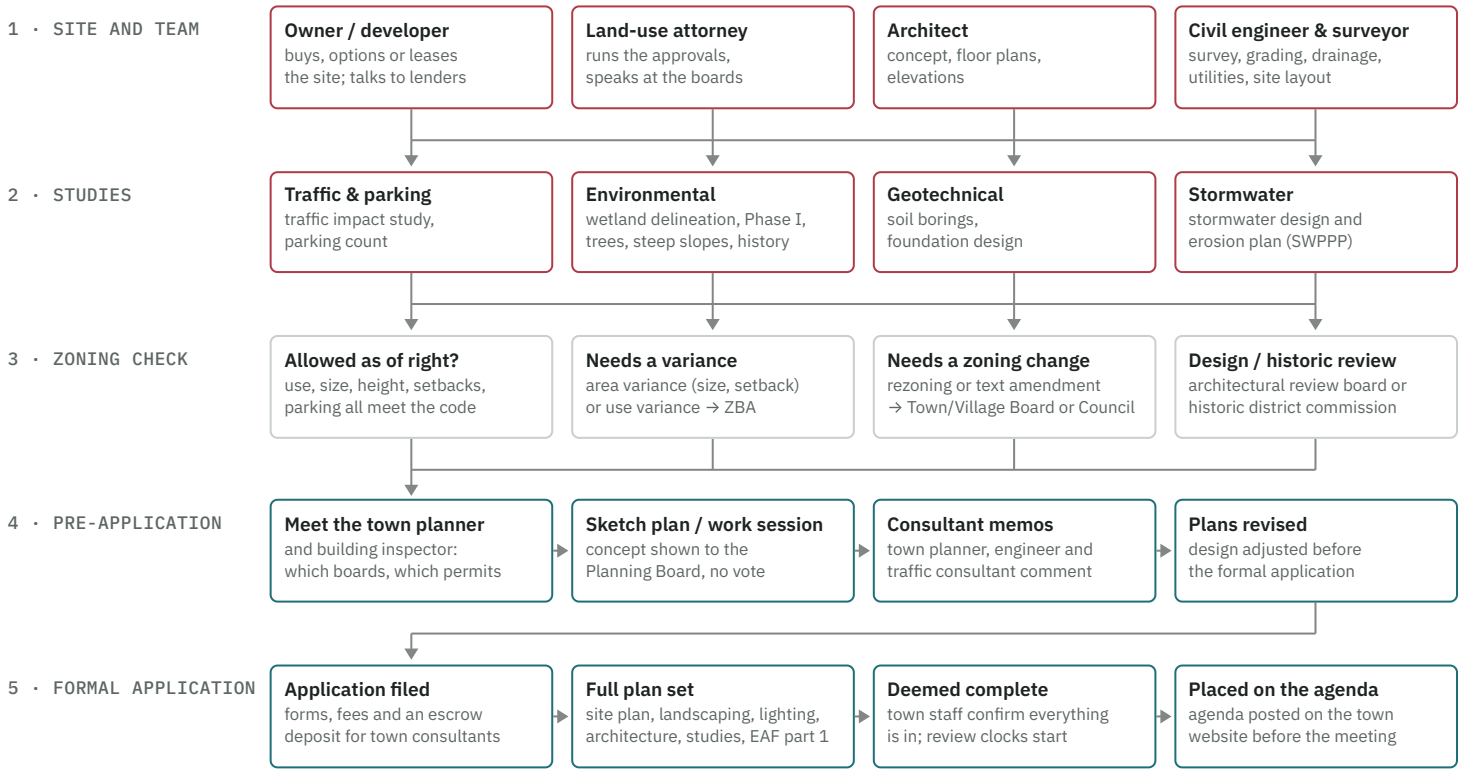
Every step for a private project in Westchester County (pages 1–5) and New York City (pages 6–10), from controlling the site to the certificate of occupancy. Small jobs skip most of the land-use steps; boards, fees and local rules differ by municipality. Checked against the law in force in November 2026.

Government step or rule Steps in order, left to right Other agency or extra step, only when it applies

Someone gets hired here

Westchester · 1 of 5: before the application

Each of Westchester's 45 cities, towns and villages runs its own boards under New York State law (Town Law, Village Law, General City Law). The county reviews but does not approve.



The owner assembles the team and studies, checks zoning, meets the town informally, then files a complete application.

AS OF RIGHT

If use, size, height, setbacks and parking meet the code, the project usually needs only Planning Board site plan approval.

ESCROW

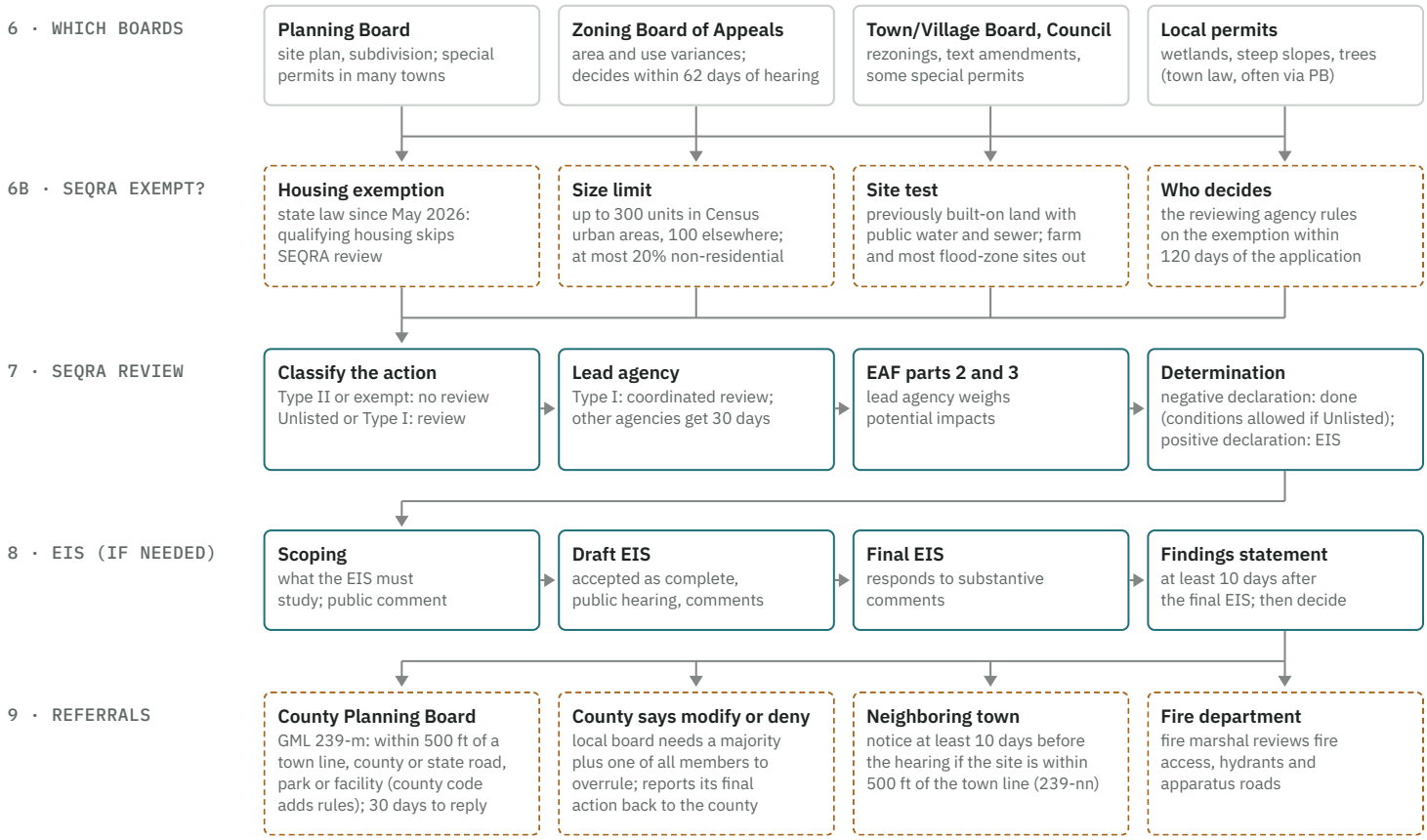
Most towns make the applicant fund the town's own planner, engineer and traffic consultant through an escrow account.

AGENDAS

Every application appears on a public agenda before each meeting, naming the project, address and usually the applicant.

Westchester · 2 of 5: boards, environmental review and referrals

The boards review in parallel with the State Environmental Quality Review Act (SEQRA) and the county referral. Since May 2026, qualifying housing is exempt from SEQRA.



Which boards apply, whether SEQRA applies at all, the SEQRA steps (with the full EIS only after a positive declaration), and the county and neighbor referrals.

SEQRA

No board may approve until SEQRA is finished: either a negative declaration or a findings statement after an EIS. Type II and exempt projects skip it.

HOUSING EXEMPTION

The state budget signed May 27, 2026 exempts qualifying housing from SEQRA. Zoning, site plan and every other permit still apply.

EIS DEADLINES

The same law gives the lead agency one year to decide whether an EIS is needed and two years to finish one, with limited extensions.

COUNTY REFERRAL

The County Planning Board reviews and comments; it cannot approve or deny, but a 'modify' or 'disapprove' raises the local vote needed.

PROTEST PETITION

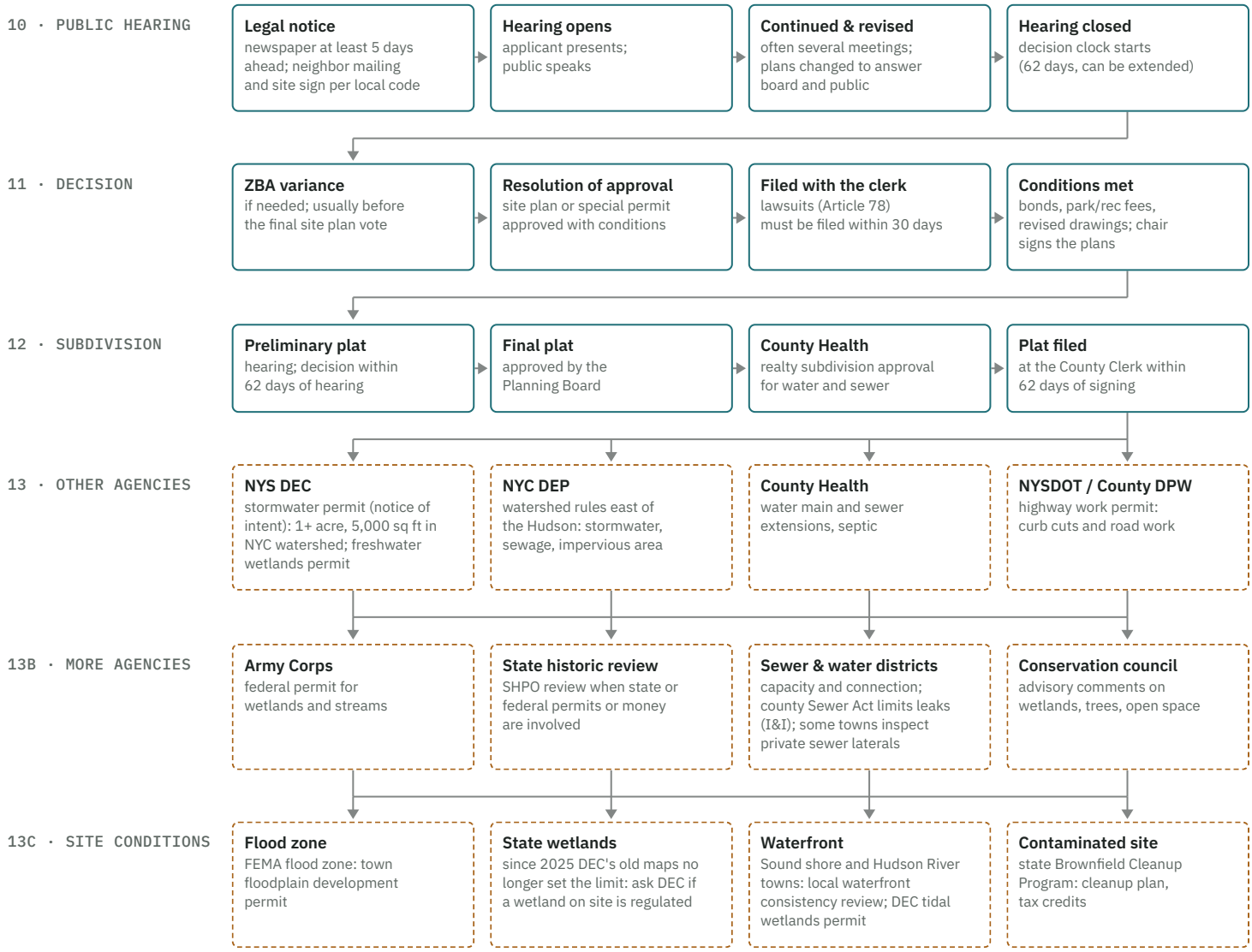
On a rezoning, owners of 20% of the land being rezoned, or of the land next to or across the street from it, can file a protest; the board then needs a three-fourths vote.

TIMING

A clean site plan can finish in a few months; variances, rezonings or an EIS commonly take a year or more.

Westchester · 3 of 5: hearing to approval

Public hearings, the board's written decision, subdivision steps if lots are created, and permits from state and regional agencies.



The hearing runs until the board is satisfied, the decision is filed, conditions are met and the chair signs the plans.

DEADLINES

Town Law sets 62 days from the close of the hearing to decide a site plan, variance or plat; the applicant can agree to extend it.

CHALLENGES

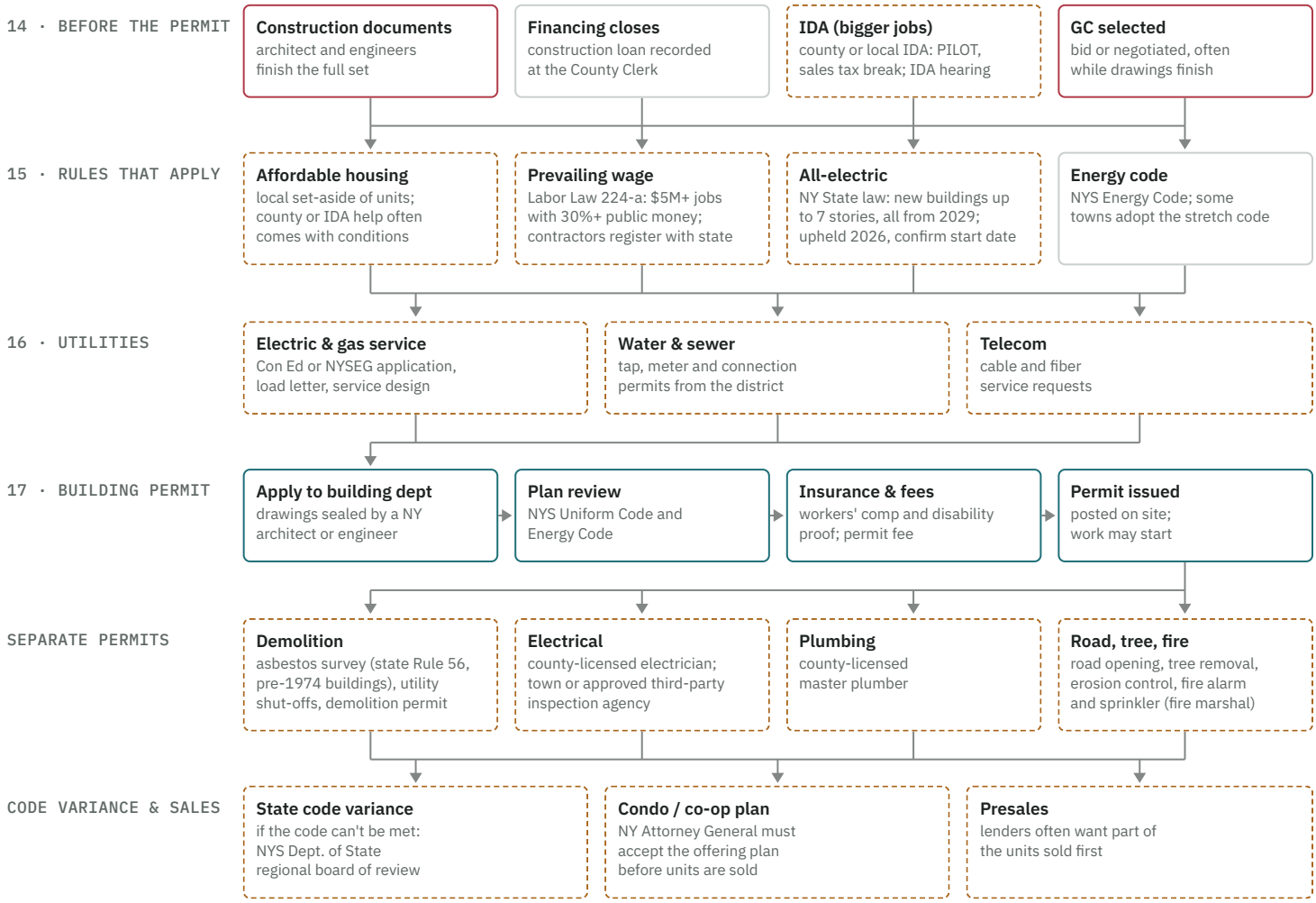
Neighbors have 30 days after the decision is filed with the clerk to sue (Article 78).

WATERSHED

Northern Westchester sits in the NYC water supply watershed, where stormwater rules start at 5,000 sq ft of disturbance. Most towns must accept the stormwater plan before the notice of intent goes to DEC.

Westchester · 4 of 5: getting ready to build

After land-use approval: drawings, money, the rules that shape the design, utilities, and the permits from the municipality's building department.



Construction documents, financing and the GC come together; funding and design rules apply; utilities are ordered; the building permit and separate permits are issued.

TWO APPROVALS

Boards approve the land use; the building department approves the construction drawings. Both are needed before work starts.

RULES THAT CHANGE

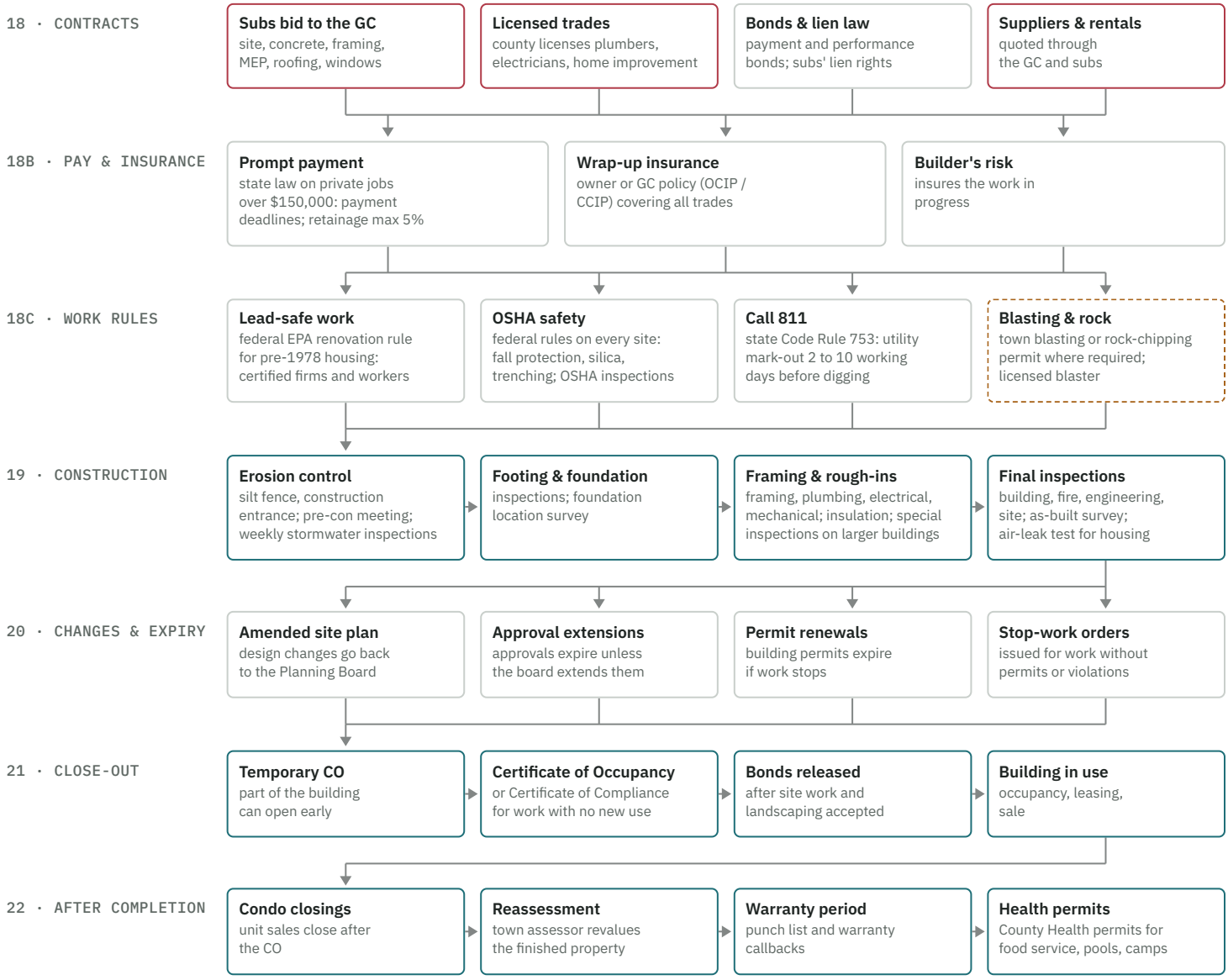
The state all-electric law was upheld on appeal in June 2026, but enforcement was paused during the lawsuit: confirm the start date. Prevailing wage applies over $5 million with 30%+ public money.

LICENSES

Westchester County licenses home improvement contractors, plumbers and electricians; workers' comp and disability proof is required for a permit.

Westchester · 5 of 5: building to occupancy

Contracts are signed, the job is built and inspected, and the municipality signs it off.



Subs, bonds and suppliers; inspections by stage; changes and expirations that can happen along the way; temporary and final certificates of occupancy.

WHO HIRES WHEN

Attorney and designers first; the GC usually while construction drawings are finished; subs and suppliers after the GC.

CHANGES

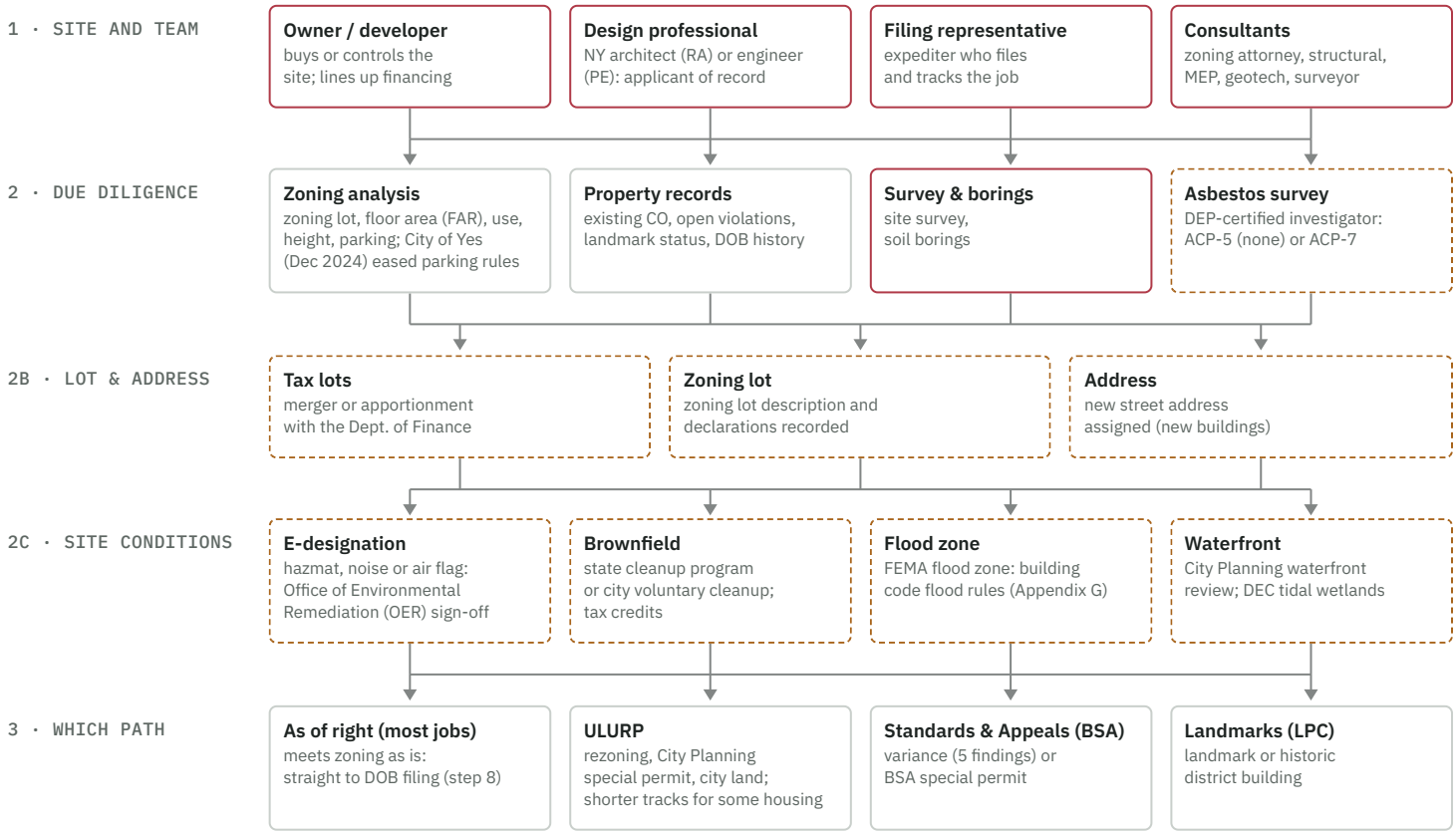
A design change after approval can send the project back to the Planning Board for an amended site plan.

CLOSE-OUT

The certificate of occupancy (or compliance) is the final sign-off; bonds are released once site work is accepted and the stormwater permit is closed with a notice of termination.

New York City · 1 of 5: before filing

One city government for all five boroughs. The Zoning Resolution decides whether a project can go straight to the Department of Buildings (DOB).



The owner assembles the team, checks zoning and the property's records, and picks the approval path.

AS OF RIGHT

Most projects need no public review: the design professional files with DOB and the job goes to plan exam.

APPLICANT OF RECORD

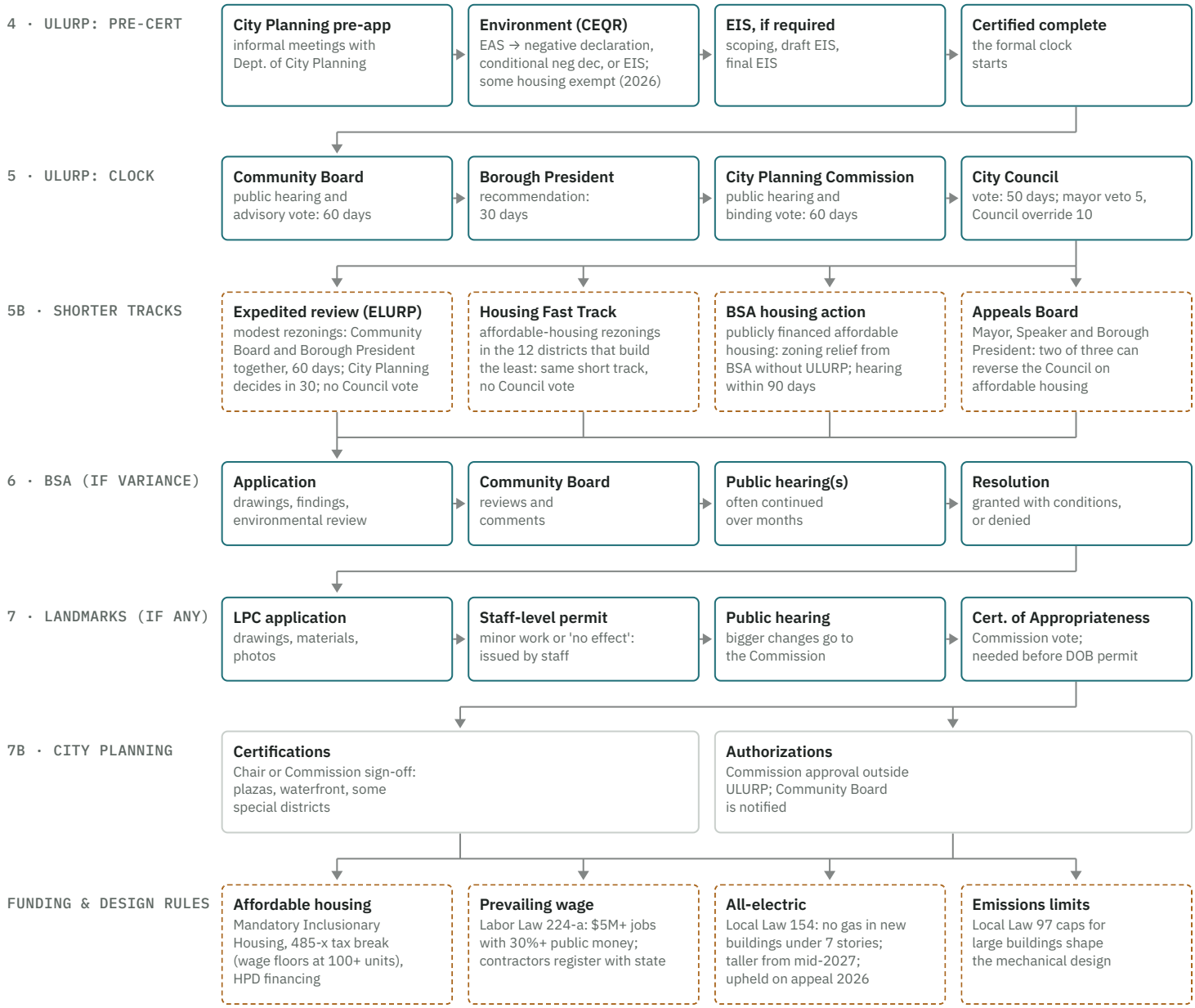
A New York licensed architect or engineer files and is responsible for the plans; a filing representative often handles the paperwork.

ASBESTOS

An asbestos survey (ACP-5, or ACP-7 if asbestos must be removed) is needed before DOB issues alteration or demolition permits.

New York City · 2 of 5: discretionary approvals

Only projects that do not meet zoning as of right, or that touch landmarks, go through these steps before DOB can approve them.



ULURP for rezonings and City Planning special permits, with shorter tracks for some housing; the Board of Standards and Appeals for variances; and Landmarks for landmark buildings.

ULURP CLOCK

After certification the formal clock is about seven months; the pre-certification work with City Planning often takes a year or more.

SHORTER TRACKS

Voters approved these charter changes in November 2025; City Planning adopted its rules for them in October 2026. On affordable housing the Appeals Board replaces the mayor's veto. Expedited review is not available when an EIS is needed.

CEQR EXEMPTION

Since May 2026 state law exempts housing of up to 250 units (500 where buildings may rise above 45 ft) from environmental review on built-on sites with water and sewer; other limits apply.

TEXT AMENDMENTS

Zoning text changes follow a similar public review outside ULURP (City Charter section 200).

LANDMARKS

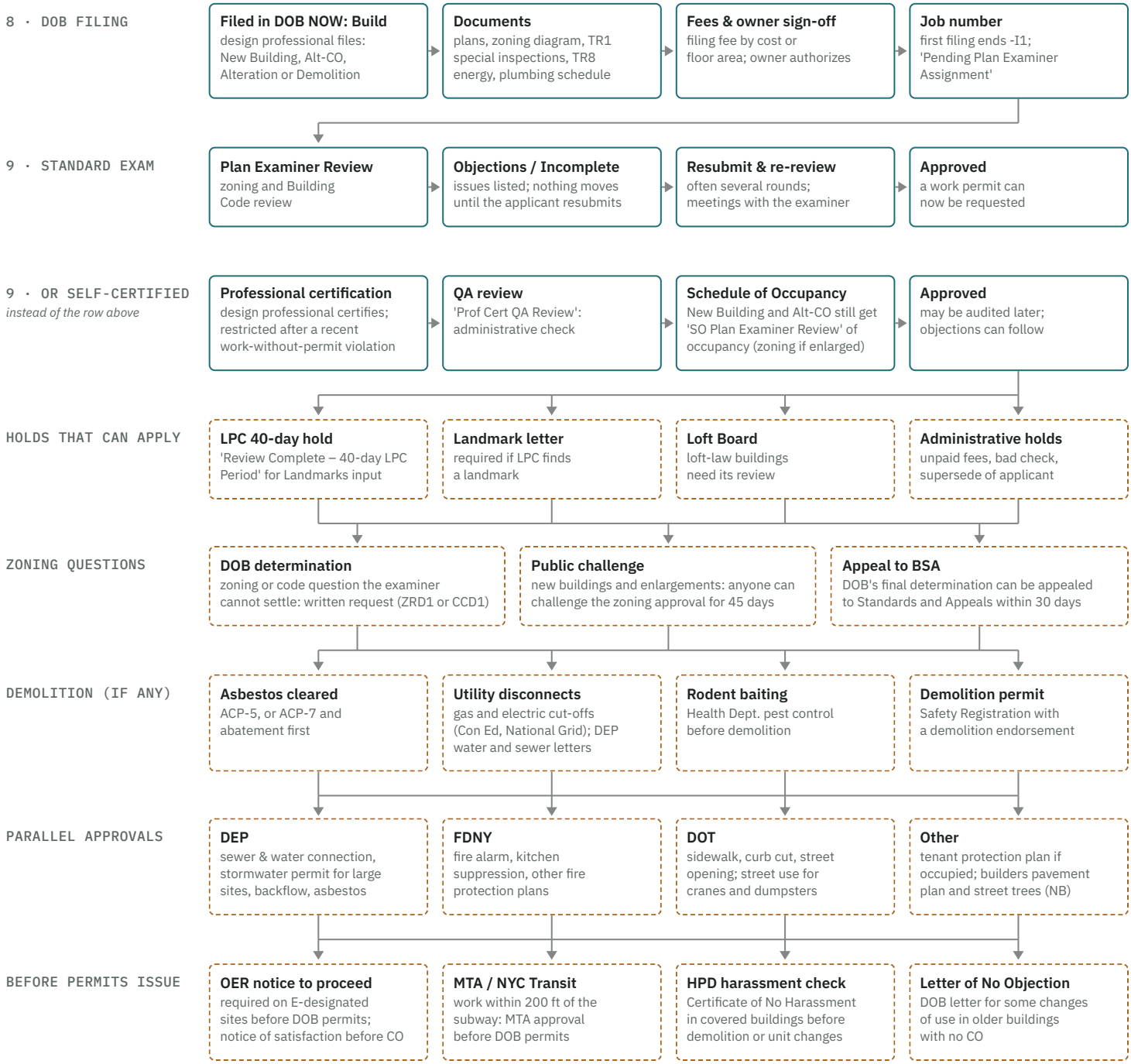
DOB will not issue permits on a landmark or historic district building without LPC sign-off.

WAGES

Prevailing wage applies over $5 million with 30%+ public money. The 485-x tax break sets its own construction wage floors for buildings of 100 or more units.

New York City · 3 of 5: DOB filing and plan exam

The design professional files in DOB NOW: Build. The status names below are DOB's own.



Filing, then either standard plan exam or professional certification, any holds or zoning questions, and approvals from other city agencies that run alongside.

JOB TYPES

New Building, Alteration-CO (major change needing a new certificate of occupancy), Alteration, and Full Demolition.

OBJECTIONS

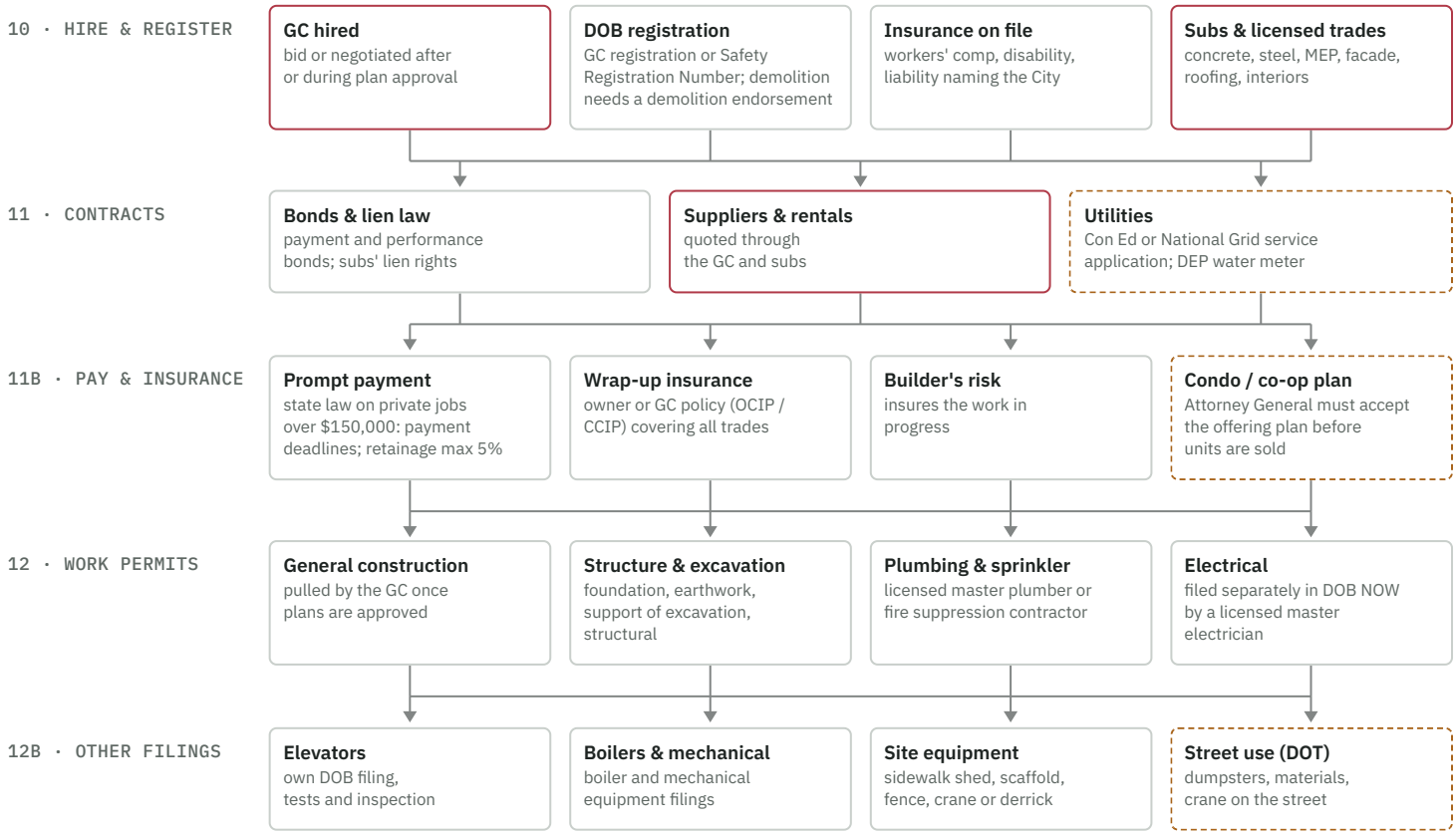
Most filings get objections at least once; the job waits with the applicant until it is resubmitted.

APPROVED IS NOT A PERMIT

'Approved' means the plans passed; no work starts until a work permit is issued.

New York City · 4 of 5: hiring and permits

Approved plans become work permits pulled by a registered GC and licensed trades, with separate filings for equipment and street use.



Hiring and registration, contracts and utility service, a permit for each work type, and the other filings a job needs.

REGISTRATION

New buildings and major alterations need a GC registration or Safety Registration Number; demolition needs a demolition endorsement.

PERMIT STATUS

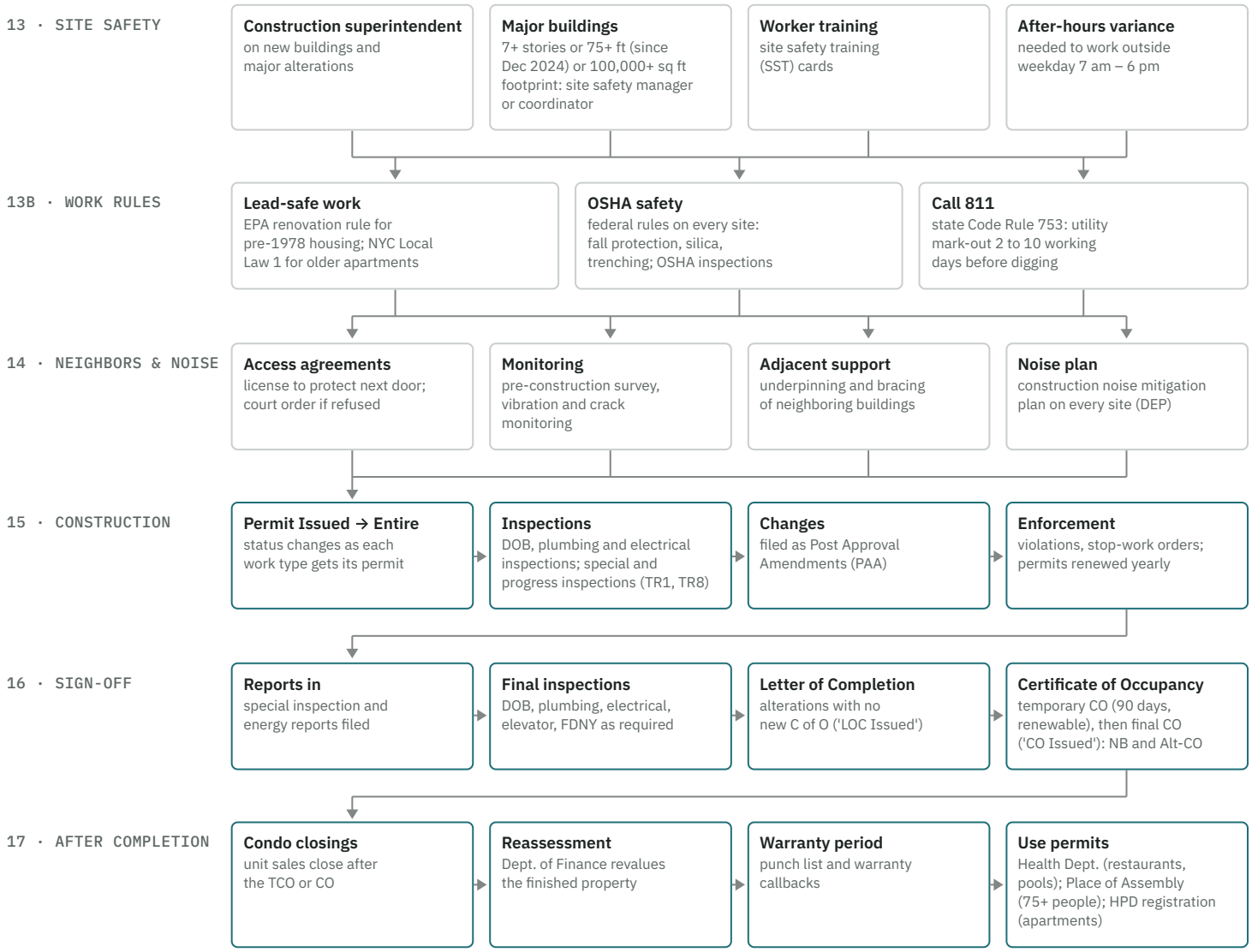
'Permit Issued' means at least one work type is permitted; 'Permit Entire' means all of them are.

EQUIPMENT

Elevators, boilers, sidewalk sheds, scaffolds and cranes each have their own filings and inspections.

New York City · 5 of 5: building to sign-off

Site safety, protecting neighbors, construction with inspections, then the letter of completion or certificate of occupancy.



Safety staffing and training, neighbor protection and noise, construction and inspections, and sign-off.

NEIGHBORS

Work that affects next-door buildings needs access, monitoring and support; refusals can go to court.

INSPECTIONS

DOB inspects; special and progress inspections are done by private inspection agencies and reported on TR1 and TR8.

SIGN-OFF

Alterations end with a Letter of Completion; New Building and Alt-CO jobs end with a final certificate of occupancy.